

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BRANDON HERNANDEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH
POWER, Tax No. 956180, POLICE OFFICER AZEEM
CHATHA, Tax No. 957449, POLICE OFFICER JUAN
GUZMAN, Tax No. 943338, and SERGEANT LAUREN
JAMIESON, Tax No. 938710,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:

Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 3, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

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TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JOSEPH POWER, Tax No. 956180, 68th Pct., 333 65th St, Brooklyn,
NY 11220
POLICE OFFICER AZEEM CHATHA, Tax No. 957449, 68th Pct., 333 65th St,
Brooklyn, NY 11220
POLICE OFFICER JUAN GUZMAN, Tax No. 943338, 68th Pct., 333 65th St, Brooklyn,
NY 11220
SERGEANT LAUREN JAMIESON, Tax No. 938710, 68th Pct., 333 65th St, Brooklyn,
NY 11220

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff BRANDON HERNANDEZ, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 3, 2018 at approximately 11:44 pm plaintiff was a lawful passenger in a vehicle located in the vicinity of 93rd Street and 3rd Avenue, Brooklyn, New York when the individually named defendant NYPD officers, approached the vehicle in an extremely aggressive manner, unlawfully ordered everyone to get out of the vehicle, unlawfully searched plaintiff, unlawfully seized plaintiff, falsely arrested/ imprisoned plaintiff, assaulted and battered plaintiff, and subjected plaintiff to the use of excessive force. The defendants unlawfully transported plaintiff against his will to the 68th Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. The police officers maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial by providing the Kings County District Attorney's Office with false, misleading, and incomplete information, allegations, and evidence that purportedly formed the defendants' basis for establishing probable cause to arrest and prosecute plaintiff, and maliciously initiated a criminal prosecution against plaintiff without probable cause. Defendants maliciously charged plaintiff with several crimes he did not commit and for which the officers lacked an objective factual basis to establish probable cause to arrest and/or prosecute plaintiff. Plaintiff was arraigned in Kings County Criminal Court on November 4, 2018, approximately 24 hours after plaintiff was initially arrested. At arraignment plaintiff was charged with several crimes he did

not commit and was released on his own recognizance. Plaintiff was required to make approximately 2 Court appearances in Kings County Criminal Court before all charges brought against him were dismissed and sealed in their entirety on May 3, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, falsely imprisoned, falsely arrested, maliciously prosecuted, assaulted, battered plaintiff, subjected plaintiff to the use of excessive force, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff BRANDON HERNANDEZ is a resident of the state of New York.

3. POLICE OFFICER JOSEPH POWER, Tax No. 956180, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER JOSEPH POWER, Tax No. 956180, was at all times relevant herein, assigned to the 68th Precinct.

5. POLICE OFFICER JOSEPH POWER, Tax No. 956180, is being sued in his individual and official capacity.

6. POLICE OFFICER AZEEM CHATHA, Tax No. 957449, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER AZEEM CHATHA, Tax No. 957449, is and was at all times relevant herein, assigned to the 68th Precinct.

8. POLICE OFFICER AZEEM CHATHA, Tax No. 957449, is being sued in his individual and official capacity.

9. POLICE OFFICER JUAN GUZMAN, Tax No. 943338, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER JUAN GUZMAN, Tax No. 943338, was at all times relevant herein, assigned to the 68th Precinct.

11. POLICE OFFICER JUAN GUZMAN, Tax No. 943338, is being sued in his individual and official capacity.

12. SERGEANT LAUREN JAMIESON, Tax No. 938710, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT LAUREN JAMIESON, Tax No. 938710, is and was at all times relevant herein, assigned to the 68th Precinct.

14. SERGEANT LAUREN JAMIESON, Tax No. 938710, is being sued in his individual and official capacity

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. By way of background, on the night of November 3, 2018, plaintiff attended a birthday celebration at a restaurant in Bayridge, Brooklyn for his girlfriend's father.

20. After the celebration ended, plaintiff's girlfriend's brother offered to drive plaintiff to the bus stop for the bus that he needed to take him home to Staten Island and plaintiff accepted the offer.

21. Plaintiff's girlfriend's brother lawfully drove plaintiff and plaintiff's girlfriend to the vicinity of 93rd Street and 3rd Avenue, which was located a few blocks away from where plaintiff had to catch the bus to Staten Island, and stopped at a corner grocery store to buy some snacks.

22. Plaintiff and his girlfriend waited in the vehicle while his girlfriend's brother ran into the store.

23. Shortly thereafter, plaintiff's girlfriend's brother returned to the vehicle with the food, got into the vehicle, and sat in the driver's seat of the vehicle.

24. The vehicle remained lawfully parked and was not running.

25. After plaintiff's girlfriend's brother got back into the vehicle, on November 3, 2018, at approximately 11:44 pm the individually named police officer defendants rushed toward the vehicle in an extremely aggressive manner.

26. Defendants did not possess reasonable suspicion or probable cause to believe any of the vehicle's occupants violated the law or committed a crime when the defendants approached the vehicle.

27. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did defendants ever have an objective factual basis to establish probable cause to believe plaintiff committed a crime or violated the law in any manner.

28. Upon approaching the vehicle, the defendants immediately unlawfully ordered plaintiff to exit the vehicle, and plaintiff complied with the unlawful order and exited the vehicle.

29. The defendants proceeded to unlawfully search plaintiff.

30. Defendants did not recover any illegal drugs, weapons or contraband from plaintiff's possession, custody or control pursuant to their unlawful search of plaintiff.

31. Nevertheless, defendants unlawfully handcuffed, falsely arrested and falsely imprisoned plaintiff, without probable cause or legal justification.

32. At no time relevant herein did plaintiff threaten defendants or behave in a manner that reasonable police officers would perceive as threatening.

33. Defendants assaulted, battered, and subjected plaintiff to the use of excessive force

34. Defendants physically grabbed plaintiff's body, without cause or legal justification and threw plaintiff onto the ground, causing pain throughout plaintiff's body.

35. After plaintiff was already handcuffed the defendants punched plaintiff in the head with closed fists while plaintiff was laying on the ground.

36. Additionally, defendants slammed their knees into plaintiff's back without any legal basis to engage in such conduct.

37. The physical force used against plaintiff by defendants caused plaintiff to suffer physical injuries to plaintiff's back, head, legs, and wrist, and plaintiff later required medical attention to treat the injuries caused by the physical force used against him by defendants.

38. Defendants transported plaintiff to the 68th Precinct against his will where plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours by defendants.

39. Eventually defendants transported plaintiff against his will to Kings County Central Booking where the unlawful detention continued until November 4, 2018.

40. Defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete allegations, facts, and evidence which purportedly formed the defendants' basis to arrest and prosecute plaintiff.

41. A criminal prosecution was initiated against plaintiff, without probable cause based upon the false, incomplete, and misleading allegations, facts, and evidence provided to the District Attorney's Office by defendants.

42. Plaintiff was arraigned in Kings County Criminal Court on November 4, 2018, approximately 24 hours after the defendants falsely arrested plaintiff.

43. Plaintiff was charged with crimes he did not commit and that the defendants lacked probable cause to charge him with committing at arraignment, including but not limited to Obstructing Governmental Administration (PL 195.05), Unlawful Possession of Marihuana (PL 221.05), and Resisting Arrest (PL 221.05).

44. At no time relevant herein did plaintiff resist arrest in any manner.

45. At no time relevant herein did plaintiff have possession, custody, or control over any marihuana.

46. At no time relevant herein did plaintiff Obstruct Governmental Administration.

47. Plaintiff was released from custody on his own recognizance at arraignment.

48. Plaintiff was required to make approximately 2 Court appearances in Kings County Criminal Court before all charges brought against him were dismissed and sealed in their entirety on May 3, 2019, and terminated in plaintiff's favor.

49. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights are liable to plaintiff for their failure to intervene.

50. Plaintiff suffered severe emotional distress stress caused by defendants' false arrest, assault, battery, use of excessive force, and subsequent unlawful criminal prosecution of plaintiff

51. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law in any manner.

52. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband of any kind from plaintiff's possession custody or control.

53. Plaintiff missed a complete day from work while he was detained by the officers and lost approximately \$200 in income as a result of the missed day of work.

54. On November 6, 2018, plaintiff sought medical treatment for the injuries caused by the officers when they used excessive force against him.

55. Plaintiff suffered from pain in his neck, back, and right knee after the incident, and had bruising throughout his body.

56. Plaintiff suffered from acute back pain, and injuries to his head, right knee, neck, back and arms.

57. Medicaid is charging plaintiff \$508.36 for the medical treatment he received for the injuries caused by defendants and is asserting a lien against plaintiff in this case for \$508.36.

58. Defendants have well documented histories of engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public.

59. Numerous complaints and lawsuits have been filed against defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline defendants for a majority of the complaints made against them.

60. Even on the occasions where the NYPD determined that defendants engaged in police misconduct, the NYPD disciplined defendants in a manner that was insufficient to address the misconduct engaged in by defendants.

61. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

62. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City

of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

63. Given defendants extensive history of engaging in police misconduct toward members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly disciplined defendants prior to the date of plaintiff's arrest in this case.

64. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers engage in police misconduct and violated the rights of members of the public, especially if the officers are violating the rights of minority males in their teens or twenties because that segment of the population is often ignored when they make complaints, and the NYPD feels no pressure to take their complaints against NYPD officers seriously.

65. The unlawful search, false arrest, false imprisonment, assault, battery, malicious prosecution, denial of due process/ right to a fair trial and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process/ a fair trial without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

69. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

74. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

80. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

82. Defendants lacked probable cause to search plaintiff.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

86. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

88. Defendants commenced and continued a criminal proceeding against plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

90. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

91. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights

Denial of Right to Fair Trial

93. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 92 with the same force and effect as if fully set forth herein.

94. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

95. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

96. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

97. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

98. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The use of excessive force by defendants by throwing plaintiff to the ground and repeatedly punching plaintiff in the head, and placing their knees in plaintiff's back in an unreasonably forceful manner as an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

103. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

104. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological, and economic injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

105. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

107. Defendants failed to intervene to prevent the unlawful conduct described herein.

108. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, denied the right to due process and subjected to the use of excessive force, without an objective factual legal basis to stop, seize, arrest, and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

112. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, falsely arrest, fabricate evidence, maliciously prosecute, deny members of the public the right to due process, and subject members of the public to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

113. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth and Fourteenth Amendment Rights of members of the public.

114. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment, malicious prosecution, and denial of due process because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search, falsely arrest, maliciously prosecute, and deny due process to members of the public when there is no factual basis to suspect the individual has committed a crime.

115. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

116. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any

consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

117. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally illegally stop, question, frisk, search, falsely arrest, maliciously prosecute, deny due process to individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and subject members of the public to the use of excessive force, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these stops and searches, arrests and prosecutions without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

118. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

119. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless stops, seizures, questions, frisks, searches, and arrests, for jaywalking.

120. The City of New York has acted with deliberate indifference to the Fourth, Fifth, and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

121. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

122. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

123. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Brandon Hernandez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 3, 2021

By: /s/

DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC** I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 3, 2021

/s/
DAVID M. HAZAN